

EDITORIAL ASSESSMENT: MANUSCRIPT REVIEW (SSRN: 5389294)

Reviewer Details: Zeus Dutta Roy

Affiliation: Independent Scientific Peer Reviewer & Editorial Consultant

Manuscript Title: "The Illusory Normativity of Rights-Based AI Regulation"

Domain: Interdisciplinary AI Governance (Law, Ethics, and Policy)

Authors: Yiyang Mei & Matthew Sag

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Journal Target: Top-tier AI-Ethics/Computer Science/Legal/Policy

Reviewer Note

This editorial assessment presents an independent, non-invited evaluation of a publicly available preprint. The assessment focuses on conceptual clarity, research positioning, and analytical robustness. It is intended as a micro-level editorial and technical evaluation and does not constitute a formal journal peer review.

Disclosure: This document is authored by Zeus Dutta Roy. All the technical assessments and final recommendations are the original intellectual work of the author, who assumes full responsibility for the content. AI (GEMINI FAST: May 2026) was used only for structural refinement.

I. EXECUTIVE SUMMARY & POSITIONING

This manuscript presents a sophisticated, contrarian critique of the "Brussels Effect," challenging the global presumption that European AI regulation is a principled, rights-driven endeavor. Utilizing **Comparative Institutional Analysis**, the authors argue that the EU's "normative halo" masks a purely **managerial and risk-oriented logic** designed to preserve systemic equilibrium within a fragmented geopolitical landscape. The paper is highly discoverable and timely, positioned strongly to disrupt current scholarship by reframing "rights" as administrative protocols rather than moral foundations.

II. CRITICAL MACRO-EVALUATION

Axiomatic vs. Technocratic Shift: The authors successfully demonstrate that while the EU utilizes "rights language" (GDPR, AI Act), these rights function as tools of institutional ordering to mitigate technological asymmetry.

Historical Grounding: The connection between the EU's current regulatory style and the Westphalian tradition of coordinating power across jurisdictions is a significant intellectual strength that elevates the paper above standard policy commentary.

Comparative Rigor: The contrast between the EU's centralized constraint and the U.S. model's sectoral pluralism and "constitutional individualism" provides a robust dialectic that clarifies the stakes of the global AI governance race.

III. DOMAIN-SPECIFIC INVESTIGATION

Data Privacy & Healthcare: The analysis correctly identifies that the EU's "human-in-the-loop" requirement is often a pragmatic response to automation bias; where oversight becomes a "rubber-stamping" exercise to maintain stability rather than a true expression of autonomy.

Labour & Misinformation: The paper expertly traces how the EU prioritizes social cohesion and democratic fortification over the "market self-regulation" seen in the U.S., framing this not as a moral choice but as a historical necessity to avoid systemic disruption.

III-A. METHODOLOGICAL SUFFICIENCY AUDIT

Analytical Framework Integrity

The manuscript demonstrates a coherent comparative institutional methodology, but its strength depends on whether the analytical criteria remain uniformly applied across the examined governance systems. The internal structure of the comparative model appears conceptually stable, though certain institutional assumptions would benefit from stronger procedural clarification. A more explicit articulation of comparative parameters would increase methodological transparency and strengthen interpretive reliability.

Case Selection Adequacy

The manuscript's selected regulatory sectors provide an adequate entry point into institutional comparison, though the representational breadth of these sectors should be examined more carefully. While the chosen domains are relevant, expanding the justificatory logic for their inclusion would reduce concerns regarding selective illustration and improve broader analytical defensibility.

Conceptual Stability Test

The manuscript's core conceptual vocabulary remains largely coherent across its argumentative progression. However, some core regulatory terms carry layered meanings that require tighter definitional discipline. Clarifying conceptual boundaries would improve interpretive consistency and reduce ambiguity during peer review.

III-B. CITATION ARCHITECTURE ASSESSMENT

Canonical Literature Coverage

The manuscript engages with relevant foundational literature and demonstrates awareness of the dominant intellectual traditions in the field. The theoretical anchoring is sufficiently robust to support the central thesis, though selective expansion into adjacent regulatory scholarship may further reinforce the paper's interdisciplinary strength.

Citation Distribution Balance

The citation structure appears strategically concentrated and generally aligned with the paper's argumentative direction. However, the inclusion of stronger opposing authorities would improve dialectical fairness and strengthen resistance against claims of selective theoretical reinforcement.

Contemporary Relevance Audit

The manuscript is timely and anchored in contemporary policy discourse. Its engagement with recent regulatory developments enhances its relevance and improves citation viability for current scholarly debate.

III-C. Institutional Epistemic Risk:

The analysis should further highlight that a purely managerial focus on procedural compliance creates a systemic vulnerability to "AI Slop." When regulation prioritizes administrative equilibrium over qualitative standards, it inadvertently facilitates the institutionalization of low utility, automated content. This "Compliance-only" culture risks polluting the very legal and academic commons the framework seeks to protect, as the "human-in-the-loop" is structurally incentivized to prioritize risk mitigation over epistemic accuracy.

IV. EDITORIAL CONSTRAINTS & RISK MAPPING

Comparative Boundary Precision: The manuscript's comparative architecture is persuasive, but stronger boundary-setting between institutional explanation and normative interpretation would improve analytical precision and reduce reviewer ambiguity.

Normative Reception Sensitivity: The manuscript's interpretive reframing of rights-based regulation may generate resistance among readers operating within established normative legal traditions. The paper concludes that the EU model is a "historically contingent response". For a European audience, this deconstruction of "universal ethics" may be viewed as an attack on European identity, requiring a more nuanced positioning in the final submission.

IV-A. REVIEWER RESISTANCE MAPPING

Reviewer Resistance Vector 1: Comparative Symmetry

Reviewers may question whether the comparative institutional model applies equivalent evaluative criteria across all jurisdictions. Clarification of symmetry principles would reduce this vulnerability.

Reviewer Resistance Vector 2: Conceptual Compression

Some reviewers may challenge whether complex regulatory traditions have been analytically compressed into simplified institutional categories. Additional conceptual clarification may improve precision.

Reviewer Resistance Vector 3: Normative Interpretation Sensitivity

The manuscript may encounter resistance from scholars invested in rights-based regulatory traditions. This is not a weakness, but the framing should anticipate ideological resistance and strengthen argumentative insulation.

IV-B. EDITORIAL RISK CLASSIFICATION

Risk Category	Severity	Editorial Implications
Conceptual Risk	Moderate	Requires tight definition
Interpretive Risk	Moderate	Hypothetical susceptibility
Reviewer Polarization	High	Likely ideological resistance
Political Sensitivity	Moderate	Jurisdiction-sensitive reception
Scope Acceptance	Low	Strong journal compatibility

V. JOURNAL SUITABILITY & REVISION STRATEGY

- 1. Refine the “Slop” Argument:** Strengthen the discussion on how managerial regulation creates a “compliance-only” culture that ignores the rise of AI-generated “slop” in institutional repositories.
- 2. Structural Refinement:** Ensure the transition between the legal theory of Part I and the case studies of Part II emphasizes the **“Risk Society” paradigm** (Ulrich Beck) as the unifying thread

V-A. JOURNAL SUITABILITY MATRIX

Scope Compatibility Assessment

The manuscript demonstrates strong thematic alignment with high-level legal theory and policy journals focused on governance, institutional analysis, and emerging regulatory systems.

Audience Relevance Assessment

Its strongest readership lies among legal scholars, governance theorists, policy researchers, and regulatory analysts working at the intersection of technology and institutional systems.

Editorial Appetite Projection

The manuscript has high editorial relevance due to its timeliness, conceptual originality, and policy significance. However, journals with strong normative traditions may evaluate it under heightened interpretive scrutiny.

Reviewer Profile Forecast

Likely reviewers will include legal theorists, AI governance scholars, comparative policy specialists, and institutional regulation experts. This interdisciplinary reviewer pool increases both impact potential and critical complexity.

Journal Fit Classification

Overall Fit: Strong

Conditionality: Moderate revision dependency

Publication Competitiveness: High

General Risk Summary

The manuscript's strongest risk profile emerges from interpretive disruption. Its argument challenges dominant assumptions, which increases scholarly resistance but also enhances intellectual significance.

V-B. REVISION PRIORITY HIERARCHY

Priority Level 1: Structural Clarification

The authors should strengthen methodological explicitness in order to improve comparative defensibility and reduce reviewer uncertainty.

Priority Level 2: Conceptual Precision

Greater definitional consistency across key institutional terms would improve argumentative stability.

Priority Level 3: Counter-position Engagement

Direct engagement with stronger opposing scholarship would increase dialectical robustness and improve reviewer confidence.

VI. PUBLICATION READINESS ASSESSMENT

Assessment Status: Accept with Minor Revisions.

Editorial Viability

The manuscript demonstrates strong publication viability within top-tier legal and policy scholarship, subject to moderate conceptual refinements.

Revision Dependency

Moderate.

The manuscript is structurally strong, but selective clarification would materially improve its peer-review resilience.

Reviewer Resistance Probability

Moderate to High.

Resistance is likely to emerge from theoretical disagreement rather than technical inadequacy.

Citation Potential

High.

The manuscript addresses an emerging regulatory problem with strong interdisciplinary relevance and sustained scholarly interest.

Long-Term Scholarly Utility

The manuscript has strong potential to contribute meaningfully to ongoing debates in AI governance, legal theory, and institutional regulation, particularly in European and transnational policy discourse.

VII. EDITORIAL INTEGRITY NOTE

This assessment evaluates the manuscript's conceptual architecture, methodological coherence, citation ecology, reviewer resistance profile, and publication-readiness potential. It is intended as a structured editorial diagnostic and does not replace formal journal peer review or editorial board adjudication.